

equall, that in that case, of which part the lord chancellor was, on that side it should be decreed, without regard, whether it was for the plaintiff or defendant: and it was resolved, that regularly *et de communi jure*, in respect of the equality of the voices no sentence could be given in that case, as it holdeth in the high court of parliament, and all other courts, according to the old rule, *paribus sententiis reus absolvitur*. And therefore the presidents of this court were to be searched; for except presidents could make a difference between this court and others, the defendant could not be sentenced. Whereupon the court referred this question to the two chief justices, that they calling unto them the kings learned counsell to view presidents, whether by the custome of this court the common rule in other courts is altered. Before whom in the presence of the kings learned counsell two presidents were produced for proof of the said custome, viz. one Termino Hil. anno 39 Eliz. between Gibson plaintiff, and Griffith and others defendants: wherein the complaint was for a riot. And upon hearing of the cause eight sat in court, and four gave their sentence that the defendants were guilty, and the other four, whereof the lord chancelour was one, did acquit the defendants, and no sentence of condemnation was ever entred. But the justices took it, that that president tended not to prove any such custome, for it agreed with the rule in other courts. Another president was shewed, Termino Hil. 45 Eliz. in an information by the queens attorney generall against Bathern and others for forging of a will, &c. Upon the hearing of the cause, the presence consisting of eight, whereof four gave sentence against the defendant for forgery, and to be punished according to the statute of 5 Eliz. the other four, whereof the lord chancelour was one, found him guilty of a misdemeanour, and not of the forgery, and imposed a fine of five hundred pound only, and imprisonment, and that was entred according to the lord chancelours voice. But no rule of court was shewed for entring thereof in that manner: so as it appeared not that it was ever moved, or debated in court, and in that case all concluded against the defendant, and it is but one president. Now whether this one, being such a one as it is, and so late, be sufficient to alter the generall law and course of all other courts, I leave to the judgment of this honourable court: and sentence was never given against Sir Stephen Procter agreeable to the generall rule in other courts. See Rot. parl. 8 H. 6. nu. 28.

Erodus fo. 172.

Hil. 39 Eliz. in camera stellata, Gibsons case.

Hil. 45 EL. in camera stellata, Batherns case.

Lawrence Hide and Henry Hide esquires, exhibited a bill of complaint against George Coriet and others upon the statute of 32 H. 8. cap. 9. for unlawfull maintenance; and complained for three severall leases for certain years of the parsonage of Dynton in the county of Wilt. whereof the lessor nor any of his ancestors were in possession within a year before, &c. and pursued the statute: upon which part of the bill (for the bill concerned riots and other things) the defendant demurred in law, and the causes of the demurrer were. First, that by the said act this court had no jurisdiction of this cause upon this statute, because that the act which is introductory of a new law did not give jurisdiction to this court, but the suit must be in the courts of the common law upon this act, which (said they) also appeared, in that in the remedy given by the act in this clause, *In which action, bill, plaint,*

Mic. 36 & 37 EL.

or information no *essoign*, *protection*, *wager of law*, or *injunction* shall be allowed, and that no *essoign*, &c. did lie in this court. The second objection was, this court had no power to give the plaintiff remedy to have execution in this court of the penalty given by this act. Whereunto upon great advisement it was answered and resolved. As to the first: that the statute did give jurisdiction to this court, for it is one of the kings courts, &c. intended in the act: and the statute of 3 H. 7. declareth that this court hath jurisdiction of maintenance, and this act of 32 H. 8. doth adde but a greater penalty: and as to the clause of *essoign*, &c. it must be construed *reddendo singula singulis*, &c. for as no *essoign*, &c. lieth in this court, so no *injunction* is awarded in the court of common pleas, &c. As to the second: it was resolved that this court had power in this case to grant execution of the penalty inflicted by this act, as in a like case had been done, in the case of James Taverner. And both these points had formerly been resolved in this court, 14 Maii. 27 Eliz. between Robert Bradshaw esquire plaintiff, and Robert Charnock esquire defendant, upon this statute, and the case decreed accordingly, and a commission awarded out of this court, to enquire of the value, &c. And for these causes by the rule of the whole court, the demurrer was over-ruled, and the defendant ordered to answer.

This court sitteth twice in the week in the term time, viz. on Wednesdays, and Fridays, except either of those dayes fall out to be the first or last day of the terme, and then the court sitteth not, but it constantly holdeth the next day after the terme ended: but if any cause be begun to be heard in the terme time, and for length or difficulty cannot be sentenced within the term, it may be continued and sentenced after the term.

It is the most honourable court, (our parliament excepted) that is in the Christian world, both in respect of the judges of the court, and of their honourable proceeding according to their just jurisdiction, and the ancient and just orders of the court. For the judges of the same are (as you have heard) the grandees of the realm, the lord chancellor, the lord treasurer, the lord president of the kings councill, the lord privy seal, all the lords spirituall, temporall, and others of the kings most honourable privy councill, and the principall judges of the realm, and such other lords of parliament as the king shall name. And they judge upon confession, or deposition of witnesses: and the court cannot sit for hearing of causes under the number of eight at the least. And it is truly said, *Curia camera stellata, si vetustatem spectemus, est antiquissima, si dignitatem, honoratissima*. This court, the right institution and ancient orders thereof being observed, doth keep all England in quiet.

Albeit the stile of the court be *coram rege et concilio*, yet the kings councill of that court hear and determine causes there, and the king in judgment of law is always in court. As in the kings bench the stile of the court is *coram rege*, and yet his justices who are his councill of that court doe hear and determine, and so *coram rege in cancellaria*, and the like.

So this court being holden *coram rege et concilio*, it is or may be compounded of a three severall counceils. That is to say, of the lords and others of his majesties privy councill, always judges with-

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Dier Mich. 6 &
7 Eliz. fo. 236.

Dier 15 El. 323.
in camera stellat.
Taverners case. Pasc.
27 El. in camera stellata.
Charnocks case.

The dignity of
this court.

The judges of
this court.

Camb. ubi supra.

^a See the 1. part
of the Institutes.
sect. 164. Verb.
*veigne les Bur-
geses al parla-
ment*.

4 E. 3. 2. 3 ass.
pl. 15.

out appointment, as before it appeareth. 2. ^b The judges of either bench and barons of the exchequer are of the kings council for matter of law, &c. and the two chief justices, or in their absence other two justices, are standing judges of this court. 3. The lords of parliament are properly *de magno concilio regis*, but neither these, being not of the kings privy councill, nor any of the rest of the judges or barons of the exchequer are standing judges of this court.

^b 39 E. 3. 5.
19 E. 3. Judg-
ment. 174.
W. 1. ca. 1.
17 E. 2. *Stat. de
Templariis*.
16 R. 2. *Stat. de
Pronunciis*.
43 Aff. pl. 15.
Regist. 124, 125.
191. 27 H. 6. 5.

² R. 3. 10. ^c 27 Aug. 5 H. 4. in the exchange between the king and the earl of Northumberland, in *turre*. 37 E. 3. ca. 18. &c. Note the parliament is called *commune concilium*.

The name of this court.

[66]

It is now, and of ancient time hath been called the chamber of the ^d stars, the ^e star-chamber, the ^f starred chamber, in respect the roof of the court is garnished with golden stars. Some have imagined that it should be called the star-chamber, because *crimina stellionat* are there handled: others of this Saxon word *stecran*, to steer or rule as doth the pilot, because this court doth steer and govern the ship of the common-wealth. Others, because it is full of windows: but the true cause of the name is, because, as is aforesaid, the roof is starred. In all records in Latin, it is called *camera stellata*.

^d 41 E. 3. ubi sup.
^e In many of the records before cited.
^f 25 H. 8. ca. 1.
Lambard.
Sir Tho. Smith.
lib. 2. ca. 4.

The processe in this court is *suppana*, attachment, processe of rebellion, &c. all under the great seal.

The processe.

Officers of the court sworn.

In this court there is the clerk of the councill, which is an office of great account, and trust, for he is to receive, endorfe, enter, keep, and certifie the bills, pleadings, records, orders, rules, sentences and decrees of the court: and I find that in former times men of great account have had that office in this court: as to give you a little taste thereof: king H. 6. by his letters patents, 15 July *anno regni sui* 22. granted the same to Thomas Kent doctor of the law for his life, calling him *clericum concilii nostri*, and soon after swore him of his privy councill. King H. 7. *anno* 1. of his reign, granted the same office to John Bladefwell doctor of laws for term of his life: but hereof this little taste shall suffice.

Lastly, it remaineth to be seen what jurisdiction this court hath in punishment, and where, and in what cases this court may inflict punishment by pillory, papers, whipping, losse of ears, tacking of ears, *stigmata* in the face, &c. (For it extendeth not to any offence that concerns the life of man or obtruncation of any member, the ears only excepted, and those rarely and in most hainous and detestable offences.) But herein the surest rule is, that seeing it is an ancient court, the presidents of the court are to be followed, and the rather for that the court consisteth of such learned and honourable judges. And novelties without warrant of presidents are not to be allowed: generally some certain rules are to be followed, especially where no presidents are extant in the case. * *Quod arbitrio iudicis relinquitur, non facile trahit ad effusionem sanguinis*: for generall acts of parliament which inflict punishment, viz. *sur for-seiture de corps et de avoir*, &c. these are expounded not to extend to life, or member, but to imprisonment, &c.

Ecclesiasticus
20. 8. *Qui potestatem sibi sumit injuste, adiatur.*
* See *statut. de moneta tempis*
E. 1. 35 E. 1.
de Carlisle.
20 E. 3. ca. 4.
Vid. 23 El. ca. 2.
And note where he shall lose his ears for defamation of the queen.

See the first part of the Institutes, sect. 745. verb. Felony. *Major*